



**Saint-Gobain – Xypex**

MN-80035

# **Phase 1 Determination**

**Acquisition may be put into effect**

11 September 2026

# 1. Determination and statement of reasons

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| <b>Notified acquisition</b>        | Saint-Gobain S.A. ( <b>Saint-Gobain</b> ), through its indirect wholly-owned Canadian subsidiary CertainTeed Canada, Inc. ( <b>CertainTeed</b> )'s proposed acquisition of 100% of the shares in Xypex Investment Holdings Inc. (the <b>Acquisition</b> ).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Determination</b>               | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Parties to the Acquisition</b>  | <p>The acquirer, CertainTeed, is a Canada-headquartered manufacturer of building products and an indirect wholly owned subsidiary of Saint-Gobain. In Australia, Saint-Gobain supplies a range of interior and exterior building products through its subsidiary CSR Building Products Pty Ltd and other companies. Saint-Gobain's subsidiary GCP Australia Pty Ltd (<b>GCP</b>) provides specialty construction chemicals and building materials in Australia across two segments:</p> <ul style="list-style-type: none"> <li>(a) chemical admixtures, supplied through its "Chryso" division</li> <li>(b) construction repair and renovation products, including waterproofing membranes, mortars, and other building technologies.</li> </ul> <p>GCP supplies its products nationally and operates three manufacturing plants in New South Wales, Queensland and Victoria.</p> <p>The target, Xypex Investment Holdings Inc, is the parent company of Xypex Chemical Corporation (<b>Xypex</b>), a Canadian manufacturer specialising in concrete waterproofing protection and repair technologies. Xypex operates in Australia through XCC Holdings Pty Ltd and its subsidiaries, Concrete Waterproofing Manufacturing Pty Ltd and National Concrete Solutions Pty Ltd. Xypex supplies:</p> <ul style="list-style-type: none"> <li>(a) crystalline waterproofing chemical admixtures</li> <li>(b) surface-applied fine mortars and mortar products used for concrete repair, and restoration mortars, using the same crystalline technology.</li> </ul> <p>Xypex supplies its products nationally from its manufacturing site in Albury, New South Wales, and maintains warehouses in Brisbane, Sydney, Melbourne and Perth. National Concrete Solutions is a specialist concrete remediation contractor that applies Xypex's products on construction projects and supplies concrete asset management services.</p> |
| <b>Overlap between the Parties</b> | The parties overlap in the supply of chemical admixture and mortar products in Australia.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Reasons for determination</b>   | <p>Chemical admixtures are products that are added to concrete during mixing to enhance or modify specific properties of the concrete such as workability, strength and durability.</p> <p>When making a determination in Phase 1, the Australian Competition and Consumer Commission (<b>ACCC</b>) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>). In doing so, the ACCC must have</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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|                                | <p>regard to the object of the Act and all relevant matters, including the interests of consumers.</p> <p>For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's <a href="#">merger assessment guidelines</a> and <a href="#">interim merger process guidelines</a>.</p> <p>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information.</p> <p>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings:</p> <ul style="list-style-type: none"><li>• The parties do not appear to be close competitors in the supply of chemical admixtures or mortar products as their products have different functionalities.</li><li>• The merged entity would continue to face competition from several alternative suppliers of chemical admixtures and mortar products in Australia.</li></ul> |
| <b>Applications for review</b> | <p>A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**